

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008456

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: TOWN OF FAIRFAX

vs.

DEFENDANT: GEORGE W. HOLLISTER,
ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: PREJUDGMENT POSSESSION

RULING

Town of Fairfax filed a motion for prejudgment possession to acquire reversionary rights in properties identified as the Hollister Parcel and the Cascade Parcel. All parties were served and in fact, default has been requested and entered as to all defendant parties. Additionally, there has been no opposition to this motion. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

For these reasons, the court shall grant Town of Fairfax's motion and sign the proposed judgment in condemnation.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008602

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ROBBIE POWELSON

vs.

DEFENDANT: MARIN COUNTY SHERIFF
CIVILIAN OVERSIGHT COMMISSION ET
AL.

NATURE OF PROCEEDINGS: 1) DEMURRER 2) MOTION – STRIKE

RULING

Defendants County of Marin (“County”), erroneously also sued as Marin County Sheriff Civilian Oversight Commission (“Commission”) and Linn Walsh’s (“Walsh”) (collectively “Defendants”) Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED in part, as to the First, Second and Third causes of action, with leave to amend. The Demurrer to portions of the Prayer is OVERRULED.

Defendants’ Motion to Strike is GRANTED with leave to amend.

BACKGROUND

Plaintiff initiated this action through filing a “Complaint for Violations of 42 USC § 1983 and Verified Petition for Writ of Mandate For Compliance with the California Public Records Act” on December 23, 2025 (“Complaint”). (RJN No. 4; Complaint, See Berg Decl., Exh. D) Plaintiff’s Complaint alleged that on December 8, 2025, he submitted a complaint and related materials to the Commission regarding an enforcement action involving Deputy Michael Thompson and Binford road resident, Sean Dering (“Dering Complaint”). (Compl., ¶ 6.) Dering had a lawsuit pending against Deputy Thompson at the time. (*Id.*) On December, 8, 2025, Plaintiff emailed Walsh and requested she forward his Dering Complaint to the Commission and alleges Walsh refused. (*Id.*, ¶7.) The Commission met on December 9 or 10, 2025 and Plaintiff attended that meeting. (Compl., ¶ 8; Berg Decl., Ex. D.) According to Plaintiff’s Complaint, he “personally distributed” his Dering Complaint to the Commission members before the meeting, and also spoke with Walsh. (*Id.*) Plaintiff alleges Walsh told him “she would ask County Counsel and then submit the documents” to the Commission members. (*Id.*) Plaintiff asserted that Walsh was not being truthful and that she privately told Commission members she could not distribute Plaintiff’s email with the Dering Complaint to them due to privacy concerns. (*Id.*, ¶ 9.) He alleges Walsh’s “intention was to block communication between